



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1275: ~~mandatory prison sentences; judicial discretion~~

NOW: diversion program; military members; veterans

KOLODIN FLOOR AMENDMENT

1. Clarifies that a defendant who is *charged with*, rather than *convicted of*, any of the outlined offenses is ineligible to participate in the Veterans Diversion Program.
2. Makes a technical change to correct an internal reference.

KOLODIN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1275

I move the following SUBSTITUTE amendment to the FEDERALISM, MILITARY AFFAIRS & ELECTIONS
Committee Amendment to
SENATE BILL 1275 (Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or
previously enacted session law.
[Green underlining in brackets] indicates text added to new session law
or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute
or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute,
previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 11, chapter 2, article 11, Arizona Revised
3 Statutes, is amended by adding section 11-366, to read:

4 11-366. Veterans diversion program; definitions

5 A. A COUNTY ATTORNEY MAY ESTABLISH A VETERANS DIVERSION PROGRAM FOR
6 THE PURPOSE OF PROSECUTING, ADJUDICATING AND TREATING A DEFENDANT WHO HAS
7 A MENTAL HEALTH CONDITION RELATED TO THE DEFENDANT'S MILITARY SERVICE IF
8 THE DEFENDANT IS A MILITARY MEMBER OR VETERAN.

9 B. THE COUNTY ATTORNEY HAS SOLE DISCRETION TO DECIDE WHETHER TO
10 DIVERT, BEFORE A GUILTY PLEA OR A TRIAL, THE PROSECUTION OF AN OFFENDER,
11 EXCEPT THAT THE VETERANS DIVERSION PROGRAM MAY BE STRUCTURED TO REQUIRE AN
12 OFFENDER TO PLEAD GUILTY BEFORE ENTRY INTO THE VETERANS DIVERSION PROGRAM.
13 THE VETERANS DIVERSION PROGRAM MAY PROVIDE FOR THE DISMISSAL OF A CRIMINAL
14 COMPLAINT ON SUCCESSFUL COMPLETION OF THE VETERANS DIVERSION PROGRAM.

15 C. EXCEPT AS OTHERWISE PROVIDED IN TITLE 13, THE COUNTY ATTORNEY
16 MAY DIVERT THE PROSECUTION OF A DEFENDANT WHO IS A VETERAN IF THE
17 DEFENDANT MEETS THE CRITERIA AND GUIDELINES FOR ENTRY INTO THE VETERANS
18 DIVERSION PROGRAM THAT ARE DEVELOPED AND AGREED ON BY THE PRESIDING JUDGE
19 AND THE PROSECUTOR.

20 D. A DEFENDANT WHO IS ~~[CONVICTED OF]~~ [CHARGED WITH] ANY OF THE
21 FOLLOWING OFFENSES IS NOT ELIGIBLE TO PARTICIPATE IN THE VETERANS
22 DIVERSION PROGRAM:

23 1. AN OFFENSE INVOLVING THE DEATH OF OR SERIOUS PHYSICAL INJURY TO
24 ANOTHER PERSON.

25 2. A DOMESTIC VIOLENCE OFFENSE AS DEFINED IN SECTION 13-3601 OR A
26 VIOLATION OF [TITLE 13.] CHAPTER 14 OR 35.1 ~~[OF THIS TITLE]~~.

1 3. AN OFFENSE IN WHICH THE DEFENDANT ENGAGES IN A CONTINUING
2 CRIMINAL ENTERPRISE.

3 E. FOR THE PURPOSES OF THIS SECTION:

4 1. "MILITARY MEMBER" MEANS AN INDIVIDUAL WHO SERVES IN THE
5 UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR, RESERVE
6 AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR FORCE,
7 SPACE FORCE, MARINE CORPS AND COAST GUARD.

8 2. "VETERAN" MEANS AN INDIVIDUAL WHO HAS SERVED IN AND WHO HAS BEEN
9 DISCHARGED, SEPARATED OR RELEASED FROM ACTIVE OR INACTIVE SERVICE IN THE
10 UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR, RESERVE
11 AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR FORCE,
12 SPACE FORCE, MARINE CORPS AND COAST GUARD, UNDER EITHER:

13 (a) HONORABLE CONDITIONS.

14 (b) DISHONORABLE CONDITIONS IF THE PERSON HAS BEEN DIAGNOSED WITH A
15 MENTAL HEALTH CONDITION, INCLUDING:

16 (i) A SUBSTANCE USE DISORDER.

17 (ii) MILITARY SEXUAL TRAUMA.

18 (iii) A TRAUMATIC BRAIN INJURY.

19 (iv) POST-TRAUMATIC STRESS DISORDER.

20 Enroll and engross to conform

21 Amend title to conform

ALEXANDER KOLODIN

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